

1 **SENATE FLOOR VERSION**

2 February 19, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 942

By: Thompson and Daniels of the
Senate

and

Gise of the House

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9 An Act relating to education; defining terms;
10 prohibiting discrimination on certain basis against
11 students or employees in an institution of higher
12 education or public school; prohibiting persons from
13 being excluded, denied benefits, or discriminated
14 against on certain basis; prohibiting criteria for
15 admission to an institution of higher education
16 course or program from restricting access to certain
17 persons; providing certain exceptions; directing
18 certain services to be available to all students;
19 directing all education programs, activities, and
20 opportunities offered by institutions of higher
21 education and public schools to be made available
22 without certain discrimination; directing
23 institutions of higher education and public schools
24 to integrate certain definition into certain codes of
conduct; prohibiting certain conduct; directing
institutions of higher education and public schools
to treat certain harassment and discrimination in
certain manner; encouraging institutions of higher
education and public schools to incorporate certain
training and integrate certain curriculum; directing
the State Department of Education and the Oklahoma
State Regents for Higher Education to designate
certain coordinator; prescribing duties of
coordinator; providing for written notice to address
certain complaint within certain time period;
providing for certain findings to be reported to
certain departments; directing submission of annual
report; providing for contents of report; providing
certain construction; providing for codification;

1 providing an effective date; and declaring an
2 emergency.
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4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 24-162 of Title 70, unless there
7 is created a duplication in numbering, reads as follows:

8 A. As used in this section:

9 1. "Antisemitism" has the same meaning as provided for by the
10 International Holocaust Remembrance Alliance Working Definition of
11 Antisemitism, including its contemporary examples, as it was adopted
12 on May 26, 2016;

13 2. "Institution of higher education" means an institution of
14 higher education within The Oklahoma State System of Higher
15 Education; and

16 3. "Public school" shall have the same meaning as provided for
17 in Section 1-106 of Title 70 of the Oklahoma Statutes.

18 B. Discrimination on the basis of race, ethnicity, national
19 origin, sex, disability, religion, or marital status against a
20 student or an employee in an institution of higher education or a
21 public school in this state shall be prohibited. No person in this
22 state shall, on the basis of race, ethnicity, national origin, sex,
23 disability, religion, or marital status, be excluded from
24 participating in, be denied the benefits of, or be subjected to

1 discrimination under any institution of higher education or public
2 school program or activity or in any employment conditions or
3 practices conducted by an institution of higher education or a
4 public school that receives or benefits from federal or state
5 financial assistance.

6 C. The criteria for admission to a program or course at an
7 institution of higher education shall not have the effect of
8 restricting access by persons of a particular race, ethnicity,
9 national origin, sex, disability, religion, or marital status;
10 provided, this shall not infringe upon the rights of student faith-
11 based organizations and ethnic solidarity organizations to select
12 leadership committed to their group's mission and principles.

13 D. All institution of higher education and public school
14 classes shall be available to all students without regard to race,
15 ethnicity, national origin, sex, disability, religion, or marital
16 status. Provided, however, the provisions of this subsection shall
17 not prohibit the provision of programs designed to meet the needs of
18 students with limited proficiency in English, gifted students, or
19 students with disabilities or programs tailored to students with
20 specialized talents or skills.

21 E. Guidance, counseling, and financial assistance services in
22 institutions of higher education and public schools shall be
23 available to all students equally and provided in the same manner
24

1 regardless of race, ethnicity, national origin, sex, disability,
2 religion, or marital status.

3 F. All education programs, activities, and opportunities
4 offered by institutions of higher education and public schools shall
5 be made available without discrimination on the basis of race,
6 ethnicity, national origin, sex, disability, religion, or marital
7 status.

8 SECTION 2. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 24-163 of Title 70, unless there
10 is created a duplication in numbering, reads as follows:

11 A. Institutions of higher education and public schools shall
12 integrate the definition of antisemitism provided for in Section 1
13 of this act into their student, faculty, and employee codes of
14 conduct. Prohibited conduct as it specifically relates to
15 antisemitism shall include harassment and discrimination against
16 Jews in compliance with Title VI of the Civil Rights Act of 1964 and
17 antidiscrimination regulations provided by the United States
18 Department of Education and the United States Department of Justice.

19 B. Institutions of higher education and public schools shall
20 treat harassment of or discrimination against students or employees
21 or resulting from institutional policies or programs on their
22 campuses motivated by or including antisemitic intent in an
23 identical manner to discrimination motivated by race.

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1 C. All institutions of higher education and public schools are
2 encouraged to:

3 1. Incorporate antisemitism awareness training for all
4 students, faculty, administrators, and campus police;

5 2. Integrate Jewish American heritage curriculum for students
6 that incorporates Jewish experiences in the United States of America
7 pre- and post-revolution, pre- and post-World War II and the
8 Holocaust, and in modern times; and

9 3. Place reasonable time, place, and manner restrictions on
10 speech to ensure order and protect the rights of all students.

11 D. 1. The State Department of Education shall designate a
12 Title VI coordinator dedicated to monitoring antisemitic
13 discrimination and harassment in public schools in this state. All
14 public schools shall electronically report incidents and complaints
15 of antisemitic discrimination and harassment to the Title VI
16 coordinator. The Title VI Coordinator shall establish, maintain,
17 and publicize a formal reporting process whereby students, parents,
18 staff, and faculty can submit complaints of antisemitic
19 discrimination and harassment.

20 2. The Title VI coordinator designated pursuant to paragraph 1
21 of this subsection shall thoroughly investigate all submitted
22 complaints. If after a reasonable investigation a Title VI
23 coordinator determines that a public school has engaged in, allowed,
24 or not sufficiently prohibited antisemitic discrimination, the State

1 Department of Education shall provide written notice to the public
2 school to address the complaint within thirty (30) days of receiving
3 the notice.

4 3. If the Title VI coordinator determines that the public
5 school has not taken the necessary actions to address the complaint
6 within thirty (30) days of receiving the notice, the Department
7 shall report its findings to the United States Department of
8 Education and the United States Department of Justice by making a
9 complaint under Title VI of the Civil Rights Act of 1964.

10 E. 1. The Oklahoma State Regents for Higher Education shall
11 designate a Title VI coordinator dedicated to monitoring antisemitic
12 discrimination and harassment in institutions of higher education in
13 this state. All institutions of higher education shall
14 electronically report incidents and complaints of antisemitic
15 discrimination and harassment to the Title VI coordinator.

16 2. The Title VI coordinator designated pursuant to paragraph 1
17 of this subsection shall thoroughly investigate all submitted
18 complaints. If after a reasonable investigation a Title VI
19 coordinator determines that an institution of higher education has
20 engaged in, allowed, or not sufficiently prohibited antisemitic
21 discrimination, the State Regents shall provide written notice to
22 the institution of higher education to address the complaint within
23 thirty (30) days of receiving the notice.
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1 3. If the Title VI coordinator determines that the institution
2 of higher education has not taken the necessary actions to address
3 the complaint within thirty (30) days of receiving the notice, the
4 State Regents shall report their findings to the United States
5 Department of Education and the United States Department of Justice
6 by making a complaint under Title VI of the Civil Rights Act of
7 1964.

8 F. No later than June 30, 2026, and June 30 each subsequent
9 year, the Title VI coordinators designated pursuant to paragraph 1
10 of subsections D and E of this section shall electronically submit
11 to the Legislature a report on antisemitism in institutions of
12 higher education and public schools.

13 G. The Legislature is encouraged to conduct hearings and/or
14 investigations to assess if institutions are adequately addressing
15 antisemitic harassment and discrimination; if not, the Legislature
16 should consider reducing or eliminating state funding to such
17 institutions.

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 24-164 of Title 70, unless there
20 is created a duplication in numbering, reads as follows:

21 A. Nothing in this act shall be construed to diminish or
22 infringe upon any right protected under the First Amendment to the
23 United States Constitution or Section 22 of Article II of the
24 Oklahoma Constitution.

1 B. Nothing in this act shall be construed to conflict with
2 federal or state discrimination laws.

3 SECTION 4. This act shall become effective July 1, 2025.

4 SECTION 5. It being immediately necessary for the preservation
5 of the public peace, health, or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
9 February 19, 2025 - DO PASS AS AMENDED BY CS
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